

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

CONFERENCE COMMITTEE
SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 2115

By: Osburn of the House

and

Thompson of the Senate

CONFERENCE COMMITTEE SUBSTITUTE

An Act relating to public assistance programs; directing the Department of Human Services to administer certain programs; designating the Department to receive certain federal funds; requiring the Department to fulfill certain federal requirements; transferring certain powers, duties, records, assets, and monies to the Department; authorizing certain agreement for transfer of personnel; creating certain employee protections; transferring certain administrative rules; providing for creation of certain transition team; amending 63 O.S. 2021, Sections 2902 and 2903, which relate to the Energy Conservation Assistance Fund; conforming language; updating statutory language; amending 74 O.S. 2021, Sections 5030 and 5032, which relate to weatherization funds; conforming language; updating statutory language; amending 74 O.S. 2021, Sections 5035, 5036, 5037, 5038, 5039, and 5040, which relate to community action agencies; conforming language; updating statutory references and language; amending 74 O.S. 2021, Section 5040.4, as amended by Section 7, Chapter 375, O.S.L. 2024 (74 O.S. Supp. 2025, Section 5040.4), which relates to the Rx for Oklahoma Act; conforming language; providing for codification; providing for recodification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 261 of Title 56, unless there is
4 created a duplication in numbering, reads as follows:

5 A. On and after the effective date of this act, the Department
6 of Human Services shall administer:

7 1. The United States Department of Energy's Weatherization
8 Assistance Program;

9 2. The United States Department of Health and Human Services'
10 Community Services Block Grant; and

11 3. The United States Department of Housing and Urban
12 Development's Emergency Solutions Grants Program.

13 B. The Department of Human Services is hereby designated to
14 receive Weatherization Assistance Program and Emergency Solutions
15 Grants Program funds appropriated, authorized, or allocated for
16 usage within this state by the United States government.

17 C. The Department of Human Services shall fulfill any
18 requirements necessary for receipt of federal program funds
19 including, but not limited to, submission of a Consolidated Plan to
20 the United States Department of Housing and Urban Development.

21 D. 1. Upon the effective date of this act, all powers and
22 duties of the Oklahoma Department of Commerce related to the
23 programs listed in subsection A of this section shall be transferred
24 to the Department of Human Services. All records, contractual

1 rights and responsibilities, assets, fund balances, encumbrances,
2 and obligations of the Oklahoma Department of Commerce related to
3 the programs listed in subsection A of this section shall be
4 transferred to the Department of Human Services.

5 2. Any monies accruing to or in the name of the Oklahoma
6 Department of Commerce in relation to the programs listed in
7 subsection A of this section on or after the effective date of this
8 act shall be transferred to the Department of Human Services.

9 3. The Director of the Office of Management and Enterprise
10 Services shall coordinate the transfer of funds, allotments,
11 purchase orders, and outstanding financial obligations or
12 encumbrances as provided for in this section.

13 4. The Oklahoma Department of Commerce and the Department of
14 Human Services may enter into an agreement for the transfer of
15 personnel from the Oklahoma Department of Commerce to the Department
16 of Human Services. No employee shall be transferred to the
17 Department of Human Services except on the freely given written
18 consent of the employee. Any employees who are transferred to the
19 Department of Human Services shall not be required to accept a
20 lesser grade or salary than presently received. All employees
21 shall, in accordance with applicable law, retain leave, sick, and
22 annual time earned, and any retirement and longevity benefits which
23 have accrued during their tenure with the Oklahoma Department of
24

1 Commerce. The transfer of personnel shall be coordinated with the
2 Office of Management and Enterprise Services.

3 5. Upon the effective date of this act, all administrative
4 rules promulgated by the Oklahoma Department of Commerce governing
5 the programs listed in subsection A of this section shall be
6 transferred to and become a part of the administrative rules of the
7 Department of Human Services. The Office of Administrative Rules
8 within the Office of the Secretary of State shall provide adequate
9 notice in The Oklahoma Register of the transfer of such rules and
10 shall place the transferred rules under the Oklahoma Administrative
11 Code title of the Department of Human Services. Such rules shall
12 continue in force and effect as rules of the Department of Human
13 Services from and after the effective date of this act, and any
14 amendment, repeal, or addition to the transferred rules shall be
15 under the jurisdiction of the Director of Human Services.

16 E. The Director of Human Services shall appoint a transition
17 team to coordinate, plan, and guide the transfer of the programs
18 listed in subsection A of this section. The transition team shall
19 consist of representatives of the Department of Human Services,
20 representatives of the Oklahoma Department of Commerce, one
21 representative of a statewide association representing community
22 action agencies, and two executive directors of community action
23 agencies.

SECTION 2. AMENDATORY 63 O.S. 2021, Section 2902, is amended to read as follows:

Section 2902. A. The ~~Oklahoma~~ Department of ~~Commerce~~ Human Services shall be responsible for the disbursement and implementation of the Energy Conservation Assistance Fund.

B. The Department shall involve senior citizen groups, social service agencies, and other civic groups in publicizing such program.

C. The Department ~~of Human Services, in cooperation with the Oklahoma Department of Commerce,~~ shall determine eligibility requirements necessary to qualify a homeowner to obtain such grants. ~~Upon meeting any such eligibility standards, the Department of Human Services shall certify to the Oklahoma Department of Commerce that such homeowner is qualified to receive such grant upon notification of such certification.~~ The ~~Oklahoma~~ Department of ~~Commerce~~ shall distribute the grant funds. Priorities shall be established for applications according to those indicating the greatest need. Low-income elderly and handicapped applicants shall be given first priority.

D. In order to qualify for grant assistance, the property shall meet all of the following requirements:

1. The property shall be the homestead of the applicant; and

1 2. The property for which the grant is issued shall not be
2 income-producing or used in any method other than as the principal
3 residence of the applicant.

4 E. Grants may be issued to finance the following types of
5 weatherization:

6 1. Structural repairs necessary to improve efficient heating
7 and cooling of the residence;

8 2. Insulation for attics, walls, and water heaters;

9 3. Replacement of broken glass, inefficient doors, and door
10 thresholds;

11 4. Storm windows;

12 5. Caulking and weather stripping; and

13 6. Other appropriate energy conservation measures as determined
14 by the ~~Oklahoma~~ Department of ~~Commerce~~.

15 F. No ~~grants~~ grant shall be:

16 1. Be made through this program unless an energy audit has been
17 performed on the applicant's principal residence;

18 ~~No grant shall exceed~~ 2. Exceed Three Thousand Dollars
19 ~~(\$3,000.00). No grant shall be; or~~

20 3. Be awarded to any applicant with an annual income in excess
21 of the amount specified in this subsection.

22 ~~Income eligibility shall be determined based on~~ one hundred
23 twenty-five percent (125%) of the poverty guidelines issued by the
24 United States Office of Management and Budget.

1 ~~F.~~ G. The application for the grant shall be in such form as
2 determined by the ~~Oklahoma~~ Department ~~of Commerce~~. No grant shall
3 be issued to any person until such person has been certified as
4 eligible by the Department ~~of Human Services~~. The applicant shall
5 be provided with copies of all documents related to the issuance of
6 the grant. The applicant shall provide documents, as required,
7 concerning the status of property and household income.

8 ~~G.~~ H. 1. The ~~Oklahoma~~ Department ~~of Commerce~~ contractors shall
9 be nonprofit community action agencies or other nonprofit entities
10 experienced with weatherization programs. The ~~Oklahoma~~ Department
11 ~~of Commerce~~ shall monitor contractors for compliance with all
12 Department policies, guidelines, and regulations.

13 2. Contractors shall be responsible for completion and
14 inspection of all work undertaken. No payment shall be made to any
15 contractor until after the required documentation is submitted and
16 approved by the ~~Oklahoma~~ Department ~~of Commerce~~. Payments to
17 contractors shall be made for services rendered and shall be based
18 on the costs previously agreed to in writing.

19 ~~H.~~ I. The ~~Oklahoma~~ Department ~~of Commerce~~ shall actively
20 monitor and audit the financial and operating records of the
21 contractors involved with the Energy Conservation Assistance Fund to
22 assure appropriate compliance with established regulations,
23 guidelines, and standards. The ~~Oklahoma~~ Department ~~of Commerce~~
24

1 shall also monitor contractors to ensure use of proper materials and
2 workmanship.

3 SECTION 3. AMENDATORY 63 O.S. 2021, Section 2903, is
4 amended to read as follows:

5 Section 2903. A. The State of Oklahoma through the Department
6 of Human Services shall have a lien against the property on which
7 the work is being performed for the amount of the loan plus interest
8 thereon. The Department shall record a notice of lien with the
9 county clerk where the property is located. A delinquent
10 installment of the loan may be foreclosed by the Department and the
11 property concerned shall be sold in the manner provided for
12 foreclosures of mortgages on land. Any real estate sold under any
13 order, judgment, or decree of court to satisfy the lien may be
14 redeemed by the owner or his or her assignee at any time within one
15 (1) year of the date of the sale by paying to the purchaser thereof
16 or his or her assignee the amount paid with interest from the date
17 of purchase at the rate of twelve percent (12%) per year.

18 B. Repayment of each loan shall be determined according to a
19 repayment schedule determined by the Department.

20 C. Repayment of the loan may be deferred until that time when
21 the loan recipient sells the property or ownership is transferred.
22 In such cases where a loan has not been repaid after ten (10) years,
23 another ten-year extension shall be granted if the loan recipient or
24 the surviving spouse is still the owner-occupier of the residence.

1 Such extensions shall be granted until such time when the property
2 is transferred from the loan recipient or the surviving spouse to
3 another party.

4 D. Loan repayments shall be made to the ~~Oklahoma~~ Department of
5 ~~Commerce~~ and shall be deposited in the Energy Conservation ~~Loan~~
6 Assistance Fund.

7 SECTION 4. AMENDATORY 74 O.S. 2021, Section 5030, is
8 amended to read as follows:

9 Section 5030. A. There is hereby created in the State Treasury
10 a revolving fund to be designated ~~as~~ the "Weatherization Revolving
11 Fund", which shall consist of all monies appropriated or transferred
12 to the fund. ~~Said~~ The revolving fund shall be a continuing fund,
13 not subject to fiscal year limitations ~~and~~, shall be under the
14 administration of the ~~Oklahoma~~ Department of ~~Commerce~~ Human
15 Services, and may be disbursed without legislative appropriation for
16 the purpose provided by subsection B of this section. ~~Warrants for~~
17 ~~expenditures~~ Expenditures from ~~said~~ the revolving fund shall be
18 ~~drawn~~ made upon warrants issued by the State Treasurer, ~~based on~~
19 against claims ~~signed by an authorized employee or employees of the~~
20 ~~Oklahoma Department of Commerce and approved for payment by~~ filed as
21 prescribed by law with the Director of the Office of Management and
22 Enterprise Services for approval and payment.

23 B. It is hereby declared that energy conservation is in the
24 interest of the State of Oklahoma. The purpose of ~~this fund~~ the

1 Weatherization Revolving Fund is to provide monies to be used for
2 the purpose of weatherizing households in Oklahoma, thereby
3 conserving the oil and natural gas resources of the state.

4 ~~B. On July 1, 1986, any unallotted cash balance in the~~
5 ~~Weatherization Revolving Fund created in Section 1537.1 of this~~
6 ~~title shall be transferred to the Weatherization Revolving Fund~~
7 ~~created in this section. All outstanding financial obligations and~~
8 ~~encumbrances of the Weatherization Revolving Fund created in Section~~
9 ~~1537.1 of this title are hereby transferred to the Oklahoma~~
10 ~~Department of Commerce. After November 15, 1986, any unexpended~~
11 ~~balance in the Weatherization Revolving Fund created in Section~~
12 ~~1537.1 of this title shall be transferred to the Weatherization~~
13 ~~Revolving Fund created in this section.~~

14 SECTION 5. AMENDATORY 74 O.S. 2021, Section 5032, is
15 amended to read as follows:

16 Section 5032. Community action agencies shall administer the
17 weatherization funds of the ~~Low-Income~~ Low Income Home Energy
18 Assistance ~~Block Grant~~ Program (LIHEAP) on a local level unless the
19 ~~Oklahoma Department of Commerce~~ Director of Human Services
20 determines that the program can be more effectively administered
21 through another entity.

22 SECTION 6. AMENDATORY 74 O.S. 2021, Section 5035, is
23 amended to read as follows:

1 Section 5035. A. ~~The Oklahoma Department of Commerce~~
2 Department of Human Services is hereby designated to receive
3 Community Services Block Grant Funds appropriated, authorized, or
4 allocated for usage within ~~the State of Oklahoma~~ this state by the
5 United States ~~Government~~ government. These funds shall be used for,
6 but not limited to, the following:

7 1. ~~Provide~~ Providing a range of services and activities having
8 major impact on causes and effects of poverty in the community or
9 those areas of the community where poverty is a particularly acute
10 problem;

11 2. ~~Provide~~ Providing activities designed to assist low-income
12 participants including the elderly poor;

- 13 a. to secure and retain meaningful employment,
- 14 b. to attain an adequate education,
- 15 c. to make better use of available income,
- 16 d. to obtain and maintain adequate housing and a suitable
17 living environment,
- 18 e. to obtain emergency assistance,
- 19 f. to remove obstacles and solve problems which block the
20 achievement of self-sufficiency, and
- 21 g. to make more effective use of other programs;

22 3. ~~Provide~~ Providing on an emergency basis for the provision of
23 such supplies and services, nutritious foodstuffs, and related
24

1 services, as may be necessary to counteract conditions of starvation
2 and malnutrition among the poor or temporarily indigent;

3 4. ~~Coordinate~~ Coordinating and ~~establish~~ establishing linkages
4 between government and other social services programs to assure the
5 effective delivery of such services to low-income individuals; and

6 5. ~~Encourage~~ Encouraging the use of entities in the private
7 sector of the community in efforts to eliminate poverty in the
8 community.

9 B. The ~~Oklahoma Department of Commerce~~ Director of Human
10 Services shall promulgate and ensure compliance ~~on~~ with rules,
11 regulations, policies, and procedures to carry out all programs of
12 the Community Services Block Grant.

13 C. At least ninety percent (90%) of the Community ~~Service~~
14 Services Block Grant funds received by the ~~Oklahoma Department of~~
15 ~~Commerce~~ Department for the state from the United States ~~Government~~
16 government shall be allocated to community action agencies, as
17 defined in ~~this act~~ Section 5001 et seq. of this title.

18 D. If the Community Services Block Grant is consolidated with
19 any other block grant or other federal program, then a proportional
20 share of the consolidated funds shall be used for services under the
21 Community Services Block Grant program in accordance with ~~this act~~
22 Section 5001 et seq. of this title for at least twelve (12) months.
23 The ~~Oklahoma Department of Commerce~~ Department shall retain
24 administrative responsibility of these funds.

1 E. For each consolidated program, proportional share shall be
2 the percentage of total funds received by all consolidated programs
3 prior to the consolidation.

4 SECTION 7. AMENDATORY 74 O.S. 2021, Section 5036, is
5 amended to read as follows:

6 Section 5036. A. A community action agency shall be defined as
7 a public or private nonprofit agency, designated by the ~~Oklahoma~~
8 ~~Department of Commerce~~ Department of Human Services.

9 B. ~~The Oklahoma Department of Commerce shall have the right to~~
10 Department may evaluate existing service areas and community action
11 agencies and, as may be necessary, modify boundaries of the service
12 areas or rescind designation in accordance with the provisions
13 ~~outlined in Section 45 of this act~~ of Section 5039 of this title so
14 that services will be adequately and efficiently provided.

15 SECTION 8. AMENDATORY 74 O.S. 2021, Section 5037, is
16 amended to read as follows:

17 Section 5037. A community action agency shall establish a
18 governing board of directors which shall consist of not less than
19 twelve nor more than thirty-six members. At least one-third of the
20 members shall be representative of the poor in the areas served and
21 shall be chosen through a democratic selection process. One-third
22 of the members shall be elected public officials or their designees
23 as established by the ~~Oklahoma Department of Commerce~~ Department of
24 Human Services. The remaining members shall be representative of

1 business, industry, labor, religious, welfare, education, or other
2 major groups and interests in the community. The community action
3 agency board of directors shall be responsible for:

4 1. The appointment and dismissal of an executive director of
5 the community action agency;

6 2. The approval of contracts, annual budget requests, and
7 operational policies of the community action agency;

8 3. The performance of an annual audit by an independent
9 auditor;

10 4. Convening of public meetings to provide citizens the
11 opportunity to comment on public policies and programs to reduce
12 poverty;

13 5. ~~Evaluate~~ Evaluation of programs and policies of the
14 community action agency; and

15 6. Compliance with all ~~Oklahoma Department of Commerce,~~
16 federal, state, and local ~~and agency~~ rules, regulations, policies,
17 and procedures.

18 SECTION 9. AMENDATORY 74 O.S. 2021, Section 5038, is
19 amended to read as follows:

20 Section 5038. To ensure statewide delivery of Community
21 Services Block Grant services, the ~~Oklahoma Department of Commerce~~
22 Department of Human Services shall establish a process to designate
23 community action agencies.

1 SECTION 10. AMENDATORY 74 O.S. 2021, Section 5039, is
2 amended to read as follows:

3 Section 5039. A. Prior to rescission of designation of a
4 community action agency, the ~~Oklahoma Department of Commerce~~
5 Department of Human Services shall:

6 1. Determine whether the existing or proposed community action
7 agency is in compliance with Sections ~~41, 42 and 43~~ 5035, 5036, and
8 5037 of this ~~act~~ title;

9 2. Evaluate the existing or proposed community action agency
10 service area, and, as may be necessary, modify the boundaries of the
11 service area so that services will be adequately and efficiently
12 provided; and

13 3. Provide a written notice containing the reasons for the
14 anticipated action to the ~~chairman~~ chair of the board of the
15 existing or proposed community action agency.

16 B. The ~~Oklahoma Department of Commerce~~ Department may rescind
17 the designation of a community action agency if it is found that the
18 community action agency is not in compliance with any or all of the
19 provisions of Sections ~~41, 42 and 43~~ 5035, 5036, and 5037 of this
20 ~~act~~ title.

21 Any agency whose designation is rescinded pursuant to this
22 section may appeal the order of rescission in accordance with
23 existing state and federal law. The ~~Oklahoma Department of Commerce~~
24 Department shall consider a community action agency or agencies for

1 the assumption of all or a portion of the service area of a
2 community action agency with contiguous borders whose designation
3 may be rescinded.

4 SECTION 11. AMENDATORY 74 O.S. 2021, Section 5040, is
5 amended to read as follows:

6 Section 5040. A. A community action agency shall serve as a
7 primary advocate for the reduction of the causes, conditions, and
8 effects of poverty and shall provide social and economic
9 opportunities that foster self-sufficiency for low-income persons.

10 Any service provided by a community action agency through the
11 Community Services Block Grant opportunity shall be made available
12 to all eligible persons within the community action agency's service
13 area. The activities of a community action agency shall, subject to
14 rules and regulations promulgated by the ~~Oklahoma Department of~~
15 ~~Commerce~~ Director of Human Services, include, but not be limited to,
16 the following:

17 1. Informing state and local governments, private agencies and
18 organizations, and citizens of the nature and extent of poverty
19 within the service area;

20 2. Developing, administering, and operating community social
21 and economic programs to reduce poverty within the entire area;

22 3. Providing and advocating for training and technical
23 assistance to the poor and other residents within the service area
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1 to better define human problems, improve services, and facilitate
2 citizen participation;

3 4. Promoting interagency cooperation and coordination in
4 providing services to low-income persons;

5 5. Entering into contracts with federal, state, and local
6 public and private agencies and organizations as necessary to carry
7 out the purposes of ~~this act~~ Section 5001 et seq. of this title; and

8 6. Engaging in any other activity necessary to fulfill the
9 intent of this section and Sections 5034 through 5039 of this title.

10 B. The ~~Department of Commerce~~ Department of Human Services
11 shall not execute a contract with a community action agency until
12 the applicant submits, and the Department approves, a budget work
13 program for expenditure of funds. Each contract shall require
14 audits of expenditures, as provided in rules promulgated by the
15 ~~Department~~ Director.

16 SECTION 12. AMENDATORY 74 O.S. 2021, Section 5040.4, as
17 amended by Section 7, Chapter 375, O.S.L. 2024 (74 O.S. Supp. 2025,
18 Section 5040.4), is amended to read as follows:

19 Section 5040.4. A. The State Department of Health shall
20 establish, through a competitive bid process, a statewide program to
21 assist medically indigent residents of Oklahoma to receive
22 prescriptions from drug manufacturer assistance programs.

23 B. Agencies including, but not limited to, the following shall
24 be encouraged by the Department to submit bids:

1. County offices of the Department of Human Services;
2. County health departments;
3. Community action agencies designated by the ~~Oklahoma~~
~~Department of Commerce~~ Department of Human Services pursuant to
Section 5038 of this title;
4. Community mental health centers;
5. Private nonprofit agencies; and
6. Public entities engaged in the delivery of social services.

C. Agencies selected by the State Department of Health to
provide services pursuant to the Rx for Oklahoma Act shall, at a
minimum, demonstrate their ability to:

1. Deliver services in a community or geographic area of the
state that is not currently receiving services pursuant to the Rx
for Oklahoma Act;
2. Maintain a dedicated telephone line and computer with
Internet access with appropriate software during normal business
hours; and
3. Have staff or volunteers available who can:
 - a. develop and implement community awareness initiatives
about the prescription assistance services offered by
the agency,
 - b. determine whether a pharmaceutical program is offered
for the drug or drugs a person needs,

- c. determine whether a person is eligible for assistance through a pharmaceutical program,
- d. assist a person to make application to and enroll in a pharmaceutical assistance program,
- e. keep accurate records of the number of clients served,
- f. maintain the confidentiality of all client information including, but not limited to, the client's identity, application information, and other records, and
- g. estimate the value of prescriptions provided to clients under the program.

D. Eligibility for the Rx for Oklahoma Act shall be residents of Oklahoma who:

1. Are medically indigent; or
2. Are not medically indigent but cannot reasonably afford to pay for prescription medications.

E. The State Department of Health shall promulgate rules or establish procedures necessary to implement the program established by the Rx for Oklahoma Act and shall electronically submit an annual report to the Legislature and the Governor no later than January 1 of each year. The report shall include, but not be limited to, the following:

1. A listing of entities awarded grants and the amount of each award;

1 2. The number of residents served who were eligible for a drug
2 manufacturer assistance program and the average amount of savings
3 per resident;

4 3. The number of residents who sought assistance pursuant to
5 the Rx for Oklahoma Act, but were determined not to be eligible for
6 a drug manufacturer assistance program; and

7 4. A report by the Department of total expenditures. Included
8 within the report shall be a summary of each grantee's
9 administrative, personnel, and direct services expenditures by
10 category relative to the grantee's administration of the program.

11 SECTION 13. RECODIFICATION 63 O.S. 2021, Sections 2901
12 and 2904, shall be recodified as Sections 261.1 and 261.4 of Title
13 56 of the Oklahoma Statutes, unless there is created a duplication
14 in numbering.

15 SECTION 14. RECODIFICATION 63 O.S. 2021, Sections 2902
16 and 2903, as amended by Sections 2 and 3 of this act, shall be
17 recodified as Sections 261.2 and 261.3 of Title 56 of the Oklahoma
18 Statutes, unless there is created a duplication in numbering.

19 SECTION 15. RECODIFICATION 74 O.S. 2021, Sections 5030
20 and 5032, as amended by Sections 4 and 5 of this act, shall be
21 recodified as Sections 261.11 and 261.12 of Title 56 of the Oklahoma
22 Statutes, unless there is created a duplication in numbering.

23 SECTION 16. RECODIFICATION 74 O.S. 2021, Sections 5034
24 and 5040.1, shall be recodified as Sections 261.21 and 261.28 of

1 Title 56 of the Oklahoma Statutes, unless there is created a
2 duplication in numbering.

3 SECTION 17. RECODIFICATION 74 O.S. 2021, Sections 5035,
4 5036, 5037, 5038, 5039, and 5040, as amended by Sections 6, 7, 8, 9,
5 10, and 11 of this act, shall be recodified as Sections 261.22,
6 261.23, 261.24, 261.25, 261.26, and 261.27 of Title 56 of the
7 Oklahoma Statutes, unless there is created a duplication in
8 numbering.

9 SECTION 18. This act shall become effective January 1, 2028.

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